



File No.: EXP202302761

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 24, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

Complaint against the responsible party of "Amor Ideal," a "Personal Relationships, Friendship, and Love Coaching Agency" in Las Palmas de Gran Canaria, whose services were contracted by the complainant. The complainant alleges that at no time was any information related to the processing of their personal data provided, nor was there any information regarding this on the business's website. Along with the complaint, the following is submitted:

- Invoice issued on August 18, 2022, by AMOR IDEAL LAS PALMAS in the name of the complainant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified mail, was returned due to incorrect address.

THIRD: On April 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

AMOR IDEAL LAS PALMAS is not a registered company in the commercial registry and does not appear on the OEPM website as a trademark as such.

Through the website of the Spanish Patent and Trademark Office, it is confirmed that the trademark (...) is registered.

At the internet address ***URL.1, franchises of AMOR IDEAL are offered. The privacy policy hosted on this website indicates that the responsible party is CORPORACIÓN DUAL GRUPO LC S.L.U. (hereinafter, CORPORACIÓN DUAL GRUPO).

On 05/24/2023, and with registration number REGAGE23s00033177448, a request for information was sent to CORPORACIÓN DUAL GRUPO requesting the details of the franchisee AMOR IDEAL LAS PALMAS, which resulted in "EXPIRED DUE TO LAPSE."

A reiteration was sent by postal mail of the previous request (date 06/05/2023 and registration number REGAGE23s00035809236) to the postal address of CORPORACIÓN DUAL GRUPO that appeared in AXESOR, and this reiteration was returned as "ABSENT."

A new reiteration was sent by postal mail to the address appearing in the "PRIVACY POLICY" section of the previously mentioned website, this reiteration was acknowledged on 07/11/2023, and no response has been received.

From the website who.is, it is obtained on 11/14/2023, that the owner of the domain www.amorideallaspalmas.com is REP CUADRADO S.L.

On 09/27/2023, and with registration number REGAGE23s00064539048, a request for information was sent to REP CUADRADO S.L. requesting the ownership of the domain <https://amorideallaspalmas.com>, on January 24, 2023, to which they responded:

"That our company Rep Cuadrado, S.L. declares that as of January 24, 2023, it did not own the

aforementioned domain, therefore we have no knowledge of the owner on that date.

That the domain was acquired at the request of our client B.B.B., with D.N.I. ***NIF.1 to whom we provide service and invoice for web maintenance, which includes hosting and domain.

Indeed, this domain was acquired and registered by our company on October 7, 2020, with the last renewal carried out on October 6, 2021, for a duration of one year. However, this renewal was not completed as the domain was transferred and acquired by another provider, whose name we do not know, at the request of our client.

That as of July 24, 2023, we have transferred the domain back to our system, becoming the owners of it from that date."

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On 27/09/2023, with registration number REGAGE23s00064698637, a request for information was sent to DIGI SPAIN TELECOM S.L. regarding the ownership of the phone number ***TELÉFONO.1, which was the contact number listed on the website AMORIDEALLASPALMAS.COM. DIGI responded that the holder of the line was B.B.B. with DNI ***NIF.1, who appears as a subject of investigation in this file.

Furthermore, a request was sent to the email addresses info@amorideallaspalmas.com and amorideallaspalmas@gmail.com, which are the emails listed in the "CONTACT" section of the website amorideallaspalmas.com and on their Facebook social media page, requesting information about the corporate name and NIF of the person responsible for the website amorideallaspalmas.com. On 26-09-2023, a response was received indicating that the website does not belong to them as it is owned by the IT company that maintains it, and that as a franchisee, they cannot make changes without providing any identifying information about the responsible party.

In the context of the inspection actions, it was confirmed that, on the date of the events, the website amorideallaspalmas.com did not have a "PRIVACY POLICY" where the details of the data controller could be found to exercise data protection rights as the complainant pointed out.

Additionally, it was verified that in the "CONTACT" form hosted on that page, personal data was collected and there was no reference to the Privacy Policy on the dates of August 9 and October 1, 2022.

As of 20/11/2023, the website now has a "PRIVACY POLICY" and the forms collecting personal data include a checkbox for acceptance of the PRIVACY POLICY and a link for access to it. The privacy policy states that the responsible party is B.B.B.

FIFTH: On April 3, 2024, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against B.B.B. for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The initiation agreement was notified in accordance with the rules established in the LPACAP, by postal mail which was not collected by the summoned party; the notification was reiterated on 11/04/2024 and 18/04/2024 by messenger, which was again returned marked "absent" and "delivery data missing."

It was published in the BOE on 22/05/2024, with ID: (...).

Finally, the summoned party accessed the content of the electronic notification on November 22, 2024, at 20:46.

After the deadline granted for the submission of allegations had passed, it was confirmed that no allegations had been received from the summoned party.

SEVENTH: On February 3, 2025, a resolution proposal was made, proposing that B.B.B., with NIF ***NIF.1, be sanctioned for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €600 (six hundred euros) and granting a period of ten days for the submission of allegations. The resolution proposal was duly notified upon the interested party accepting the electronic notification on that same date, as recorded in the acknowledgment of receipt in the file. After the deadline granted for the submission of allegations had passed, it was confirmed that no

allegations had been received from the summoned party.

In view of all that has transpired, the Spanish Data Protection Agency considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: The complainant contracted the services of the summoned party as evidenced by the invoice provided in the complaint, which details the invoice number, the amount, the billing date, and the due date, the details of the issuer (Amor Ideal Las Palmas, ***NIF.1, ***DIRECCIÓN.1), the recipient (A.A.A., ***NIF.2), the concept, the account number for payment, and a phone number for payment via bizum (***TELÉFONO.1).

The invoice also features a stamp with the logo and name of Amor Ideal Las Palmas and below it the name and DNI of the summoned party (B.B.B., ***NIF.1, ***DIRECCIÓN.2), as well as a handwritten signature.

No information regarding the processing of the complainant's personal data or a privacy policy is included therein.

SECOND: At the time of the events, the website amorideallaspalmas.com did not have a "PRIVACY POLICY" section where the details of the data controller could be found to exercise the rights established by law that the complainant alleged, which was the subject of this complaint, as noted in the preliminary investigation report dated 20/11/23.

THIRD: In the invoice provided by the complainant, the following phone number was indicated for payment via bizum: ***TELÉFONO.1. This same number was the contact number listed on the website amorideallaspalmas.com. According to the response from DIGI SPAIN TELECOM SL dated September 27, 2023, to a request from this Agency, the holder of the phone number ***TELÉFONO.1 was B.B.B. with DNI ***NIF.1.

FOURTH: It is established that the summoned party is the data controller due to their relationship with the website, as evidenced by the contact phone number listed on the website

AMORIDEALLASPALMAS.COM and on the issued invoice, both of which feature the logo and name of AMOR IDEAL. The ownership of the line corresponds to the summoned party.

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As already indicated in the invoice, in addition to the phone number, there is also a seal with the logo and name of Amor Ideal Las Palmas, and below it, the name and ID number of the party being claimed.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached. Article 13 of the GDPR

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, whereby:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

a) the identity and contact details of the controller and, where applicable, of the controller's

representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, if any;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:

a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which the data were collected, it shall provide the data subject prior to that further processing with information about that other purpose and any pertinent further information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

Article 12.1 of the GDPR indicates that the controller shall take appropriate measures to provide the data subject with all the information referred to in Article 13 as transcribed, as well as any communication in accordance with Articles 15 to 22; the lack of this information constitutes the subject of the complaint.

In accordance with the proven facts, it is considered that the party being claimed has committed a breach of the information duties provided for in Article 13 of the GDPR, as the invoice provided by the claiming party dated 08/19/2022, which certifies the contractual relationship of the claimant with the party being claimed, does not contain any information regarding the protection of personal data.

On the date of the complaint, the website of the party being claimed did not have a privacy policy or any information in the terms of Article 13 of the GDPR.

It has since been verified (on 11/20/2023) that the website now includes the section "PRIVACY POLICY" which indicates who the data controller is, coinciding with the party being claimed, and contains the other elements outlined in Article 13 of the GDPR, which determines that no corrective measures are ordered; however, the infringement has been committed in any case.

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Typification and Qualification of the Infraction

The aforementioned infraction of Article 13 of the GDPR constitutes the commission of one of the infractions typified in Article 83.5 of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" states:

"Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects pursuant to Articles 12 to 22;

For the sole purpose of the statute of limitations for infractions, the alleged infraction is subject to a three-year limitation period, in accordance with Article 72.1.h of the LOPDGDD, which qualifies the following conduct as very serious:

"h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

IV

Sanction for the Infraction of Article 13 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infractions of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infraction, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage suffered;

b) the intentionality or negligence in the infraction;

c) any measures taken by the controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infractions committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infraction and mitigate the possible adverse effects of the infraction;

g) the categories of personal data affected by the infraction;

h) the manner in which the supervisory authority became aware of the infraction, in particular whether the controller or processor notified the infraction and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infraction."

For its part, Article 76 "Sanctions and Corrective Measures" of the LOPDGDD states:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may

also be taken into account:

- a) The continued nature of the infraction.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infraction.
- d) The possibility that the conduct of the affected party may have induced the commission of the infraction.
- e) The existence of a merger by absorption after the commission of the infraction, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

In light of the criteria outlined, it is considered appropriate to impose a sanction on the respondent for the violation of Article 13 of the GDPR, typified in Article 83.5 of the GDPR, in the amount of €600 (six hundred euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 600.00 euros (SIX HUNDRED euros).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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